

FIRST ENDORSEMENT

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr, Department Advocate's Office, September 5, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS Nos. 2022-24889 and 2022-26868 against Police Officer Michael McGuire, Tax Registry No. 955166. The case was conferenced on August 27, 2024, before Assistant Deputy Commissioner of Trials Anne E. Stone, who approved the dismissal of the charges in both cases in return for the recommended negotiated penalty of a Command Discipline (B) and the forfeiture of ten (10) vacation days.

Andre Applewhite

Andre Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2022-24889

BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, MCGUIRE	FIRST MICHAEL	M.I. C	COMMAND COMMUNITY AFFAIRS SECTION
SHIELD NO. 25906	TAX REGISTRY NO. 955166	SOCIAL SECURITY NO.	DATE APPOINTED 07/09/2013	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Michael MCGUIRE, on or about January 28, 2020, at approximately 2220, while assigned to 020 PCT and on duty, near the entrance of Duane Reade located at 2025 Broadway, New York County, wrongfully used force, in that he restricted § 87(2)(b) breathing without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.


FIRST DEPUTY COMMISSIONER

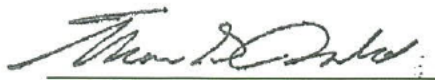
9/26/24
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)


POLICE COMMISSIONER

10/8/24
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2022-26868

BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, MCGUIRE	FIRST MICHAEL	M.I. C	COMMAND COMMUNITY AFFAIRS SECTION
SHIELD NO. 25906	TAX REGISTRY NO. 955166	SOCIAL SECURITY NO.	DATE APPOINTED 07/09/2013	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Police Officer Michael Mcguire, on or about March 18, 2021, at approximately 1700, while assigned to 020 PCT and on duty, in the vicinity of § 87(2)(b) New York County, wrongfully used force, in that he punched § 87(2)(b) in the face without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Police Officer Michael Mcguire, on or about March 18, 2021, at approximately 1700, while assigned to 020 PCT and on duty, in the vicinity of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he forcibly removed § 87(2)(b) to the hospital without sufficient legal authority.	DISMISSED	

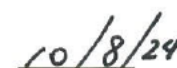

FIRST DEPUTY COMMISSIONER


DATE

POLICE COMMISSIONER'S APPROVAL

- ☐ Approved
- ☒ Disapproved
- ☐ Other Action (Describe)


POLICE COMMISSIONER


DATE

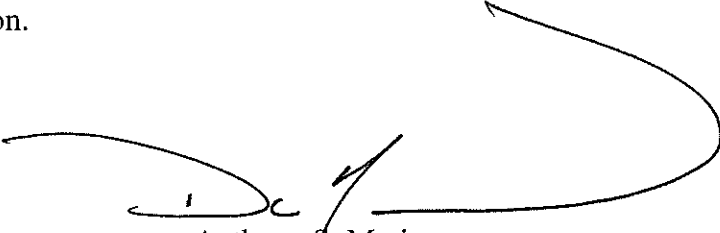
FOURTH ENDORSEMENT

COMMANDING OFFICER, POLICE COMMISSIONER'S OFFICE to First Deputy Commissioner, October 8, 2024. Please note the Police Commissioner's **DISAPPROVAL** of the Third Endorsement regarding Disciplinary Case Nos. 2022-24889 and 2022-26868 against Police Officer Michael McGuire, Tax No. 955166.

The Police Commissioner has reviewed the Civilian Complaint Review Board's (CCRB) recommended penalty regarding the substantiated allegations against Police Officer McGuire and determined that a higher penalty more appropriate and in accordance with the Disciplinary System Penalty Guidelines.

The Police Commissioner **directs** that this matter be renegotiated for the forfeiture of twenty (20) vacation days. Such penalty consists of the mitigated penalty of ten (10) vacation days for Specification No. 1 of Disciplinary Case No. 2022-24889, and the presumptive penalty of ten (10) vacation days for Specification No. 1 of Disciplinary Case No. 2022-26868, to run consecutively for the total of twenty (20) vacation days. Furthermore, the Police Commissioner directs that Specification No. 2 of Disciplinary Case No. 2022-26868 remain dismissed for which Police Officer McGuire shall receive no disciplinary action.

Forwarded for your necessary attention.



Anthony S. Marino
Deputy Chief

AM/ms



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-26868
BOOK & PAGE NO. Page <u>1</u> of <u>1</u>
PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, MCGUIRE	FIRST MICHAEL	M.I.	COMMAND COMMUNITY AFFAIRS SECTION
SHIELD NO. 25906	TAX REGISTRY NO. 955166	SOCIAL SECURITY NO.		DATE APPOINTED 07/09/2013
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES 08/22/2022		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Michael McGuire, on or about March 18, 2021, at approximately 1700, while assigned to 020 PCT and on duty, in the vicinity of § 87(2)(b) New York County, wrongfully used force, in that he punched § 87(2)(b) in the face without police necessity.	PLEADED GUILTY	VACATION DAYS 20.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated. Combined with case 2022-24889
2. Police Officer Michael McGuire, on or about March 18, 2021, at approximately 1700, while assigned to 020 PCT and on duty, in the vicinity of § 87(2)(b) New York County, abused his authority as a member of the New York City Police Department, in that he forcibly removed § 87(2)(b) to the hospital without sufficient legal authority.	DISMISSED	


FIRST DEPUTY COMMISSIONER

11/21/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)


POLICE COMMISSIONER

11/22/24
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO.
2022-24889

BOOK & PAGE NO.
Page 1 of 1

PERSONNEL ORDER NO.

RANK/TITLE PO	SURNAME, MCGUIRE	FIRST MICHAEL	M.I.	COMMAND COMMUNITY AFFAIRS SECTION
SHIELD NO. 25906	TAX REGISTRY NO. 955166	SOCIAL SECURITY NO.	DATE APPOINTED 07/09/2013	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES 03/01/2024	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Michael MCGUIRE, on or about January 28, 2020, at approximately 2220, while assigned to 020 PCT and on duty, near the entrance of Duane Reade located at 2025 Broadway, New York County, wrongfully used force, in that he restricted § 87(2)(b) breathing without police necessity..	PLEADED GUILTY	VACATION DAYS 20.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated. Combined with case 2022-26868

DC Busio
FIRST DEPUTY COMMISSIONER

11/21/24
DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
- ☐ Disapproved
- ☐ Other Action (Describe)

Thomas DeSantis
POLICE COMMISSIONER

11/22/24
DATE

1DC #2024-2846

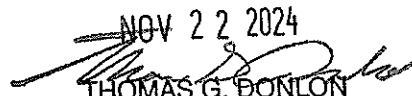
SEVENTH ENDORSEMENT

First Deputy Commissioner to Police Commissioner, November 20, 2024. Contents noted. As per your direction, enclosed is the Settlement Agreement in Disciplinary Case Nos. 2022-24889 and 2022-26868, against Police Officer Michael McGuire, Tax No. 955166. Forwarded for your **APPROVAL**.

TIK/es


Tania I. Kinsella
 **FIRST DEPUTY COMMISSIONER**

APPROVED

NOV 22 2024

THOMAS G. DONLON
POLICE COMMISSIONER